



U.S. Department
of Transportation

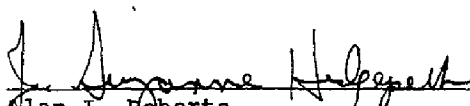
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7638 (EXTENSION)
EIGHTH REVISION February 13, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7638 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 6 1991

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Minnesota Valley Engineering, Inc.
New Prague, MN

July 24, 1991

Application Withdrawn
No RENEWAL



U.S. Department
of Transportation

Research and
Special Programs
Administration

CFR 13 1990

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7638
(EIGHTH REVISION)

1. Minnesota Valley Engineering, New Prague, Minnesota, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the nonflammable gases described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a DOT Specification 4L cylinder for certain specified gases, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Minnesota Valley Engineering's application dated October 16, 1989, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Carbon dioxide, refrigerated liquid, and Nitrous oxide, refrigerated liquid, classed as nonflammable gases.

4. PROPER SHIPPING NAME (49 CFR 172.101). Carbon dioxide, refrigerated liquid or Nitrous oxide, refrigerated liquid, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.316(a), 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel and cargo-aircraft only.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 4L welded cylinder conforming with the following models and related drawings and calculations submitted to the Office of Hazardous Materials Transportation (OHMT):

Model No.	Service Pressure (psig)	Gross Water Capacity (lbs.)	Final Assembly Drawing No.
VGL-160-L	292	384	D-8038
Dura-Max	292	384	D-26347
Duramax 5500	292	455	D-26347
Duramax 5100	292	426	D-26347
Dura-Tech VHP	292	530	D-32890
HLT 110 G	295	1113	D-25651
Dura-Mite	372	187	D-21092

- b. The maximum allowable filling density must be as follows:

<u>Pressure Relief Valve</u> <u>Setting - psig</u>	<u>Per Cent - Filling Density</u>	
	<u>CO₂</u>	<u>N O 2</u>
350	97.0	94.0
450	94.5	90.5

- c. Each cylinder must be protected with at least one pressure relief valve and at least one frangible disc complying with 49 CFR 173.34(d). The relieving capacity of the safety devices must be in accordance with CGA Pamphlet S1.1 on a bare tank basis.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

- b. A copy of this exemption must be carried aboard each motor vehicle, aircraft, and cargo vessel used to transport packages covered by this exemption.

- c. Each cylinder must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 7638."

- d. The temperature of the cargo at the time of loading must not exceed 0° F. (291 psig) for carbon dioxide and +4° F. (291 psig) for nitrous oxide. Maximum travel time may not exceed 120 hours.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. September 30, 1991.

Issued at Washington, D.C.:


Alan I. Roberts

Director

Office of Hazardous Materials Transportation

FEB 13 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FAA, FHWA, FRA



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Research and
Special Programs
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400 Seventh Street, S.W.
Washington, D.C. 20590

MAR 3 - 1994

DOT-E 7638
DOT# 75

E 7638

Ms. Tracy Rudy
Quality Control Manager
Minnesota Valley Engineering, Inc.
Two Appletree Square, Suite 100
Bloomington, MN 55425-1636

Dear Ms. Rudy:

This will acknowledge receipt of your February 6, 1994 letter withdrawing your June 18, 1993 application for renewal of DOT-E 7638.

Sincerely,

J. Suzanne Hedgepeth
J. Suzanne Hedgepeth
Chief, Exemptions Program
Office of Hazardous Materials
Exemptions and Approvals

RECEIVED
FEB 24 1994

MVE

Cryogenics

MINNESOTA VALLEY ENGINEERING, INC.

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February 16, 1994

U.S. Department of Transportation
Associate Administrator for Hazardous Materials Safety
400 Seventh Street S.W.
Washington, DC 20590-0001

ATTN: J. Suzanne Hedgepeth
Chief, Exemptions Branch

Dear Ms. Hedgepeth,

On June 28, 1993, Tom Carey submitted an application for renewal of Exemption Number DOT-E-7638. Due to changes noted in the Federal Register of September 27, 1993, Vol. 58 No. 185, I would like to withdraw this application.

If you have any questions please contact me at (404) 479-6531 or FAX (404) 479-4603.

Tracy Rudy
Tracy Rudy
Quality Control Manager

c: Tom Carey